

The motions to compel further responses to FROGs and Employment FROGs are denied as moot.

The motion to compel Plaintiff to provide documents responsive to RFPs in their native form, with metadata, is denied.

All requests for sanctions are denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306261	MANZANARES VS SYSCO CORPORATION	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Request for Judicial Notice/Evidentiary Objections

Defendants request judicial notice of (A) minute order from Rasso v. Sysco Corporation (Los Angeles Superior Court); (B) Plaintiff Manzanares' CRD complaint and right to sue letter; (C) Plaintiff Koke's CRD complaint and right to sue letter; and (D) ruling from Williams v. Sysco Riverside (Los Angeles Superior Court). In reply, Defendants also request judicial notice of rulings from (E) Williams v. Sysco Riverside (Los Angeles Superior Court).

The court grants judicial notice of Exhibits B and C. (Evidence Code §452(c).)
The court denies judicial notice of Exhibits A, D and E. They are not relevant as they are not binding rulings on this court—there is no res judicata nor collateral estoppel effect from those rulings. Accordingly, they are completely irrelevant to the issues present in this motion.

Defendants submit in reply a 29-page list of objections, that are not numbered, in violation of California Rules of Court, Rule 3.1354(b) ["Each written objection must be numbered consecutively...."].) The court rules as follows:

- Sustain as to the deposition transcripts of (objection no. 1), (5), (6) Teresa Livesay, (2) Randall Hoover, (4) Patti Cheselske. (Code Civ. Proc. § 2025.620(g); Evidence Code § 1291; *Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 882.)
- Sustain as to exhibits (objection no. 3) 8 [email], (7) 13 [internal investigation report], (8) 14 [Linked in profile].

- As to Koke's declaration, sustain in part as to ¶¶8 ("forced termination"), 18 ("Hoover was retaliating"), 19 ("the retaliation towards me escalated"), 31 ("was forced out") only as to improper opinions as to legal conclusions. The court also sustains ¶27 as inadmissible character evidence. The court overrules the other objections as to Koke's declaration.
- As to Manzanares' declaration, sustain in part as to ¶20 ("forced to quit"), 29 ("forced out", "retaliation"), 30 ("hostile environment"), 31 ("hostile environment"). The court overrules the other objections as to Manzanares' declaration.

Merits

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet his initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (CCP §437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A. FEHA Exhaustion of Administrative Remedies / Statute of Limitations

First, Defendants move for summary adjudication of this issue. (Issue No. 30.) Summary adjudication is to a cause of action, affirmative defense, issue of duty or punitive damages. (Code Civ. Proc., §437c(f)(1).) This is not appropriate for summary adjudication. However, it is relevant to analyze the issue as it frames the issues for the remaining causes of action.

In order to sue for a violation of a FEHA claim, a plaintiff must first timely file a sufficient administrative complaint with the Civil Rights Department (CRD) (formally known as the Department of Fair Employment and Housing [DFEH]). (Gov. Code, §§12960, 12965(c).) A plaintiff has the burden to plead and prove the timely filing of the administrative complaint. (*Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1402.) Exhaustion of administrative remedies is "a jurisdictional prerequisite to resort to the court." (*Campbell v. Regents of Univ. of Calif.* (2005) 35 Cal.4th 311, 321; *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 70.) An employee must file an administrative complaint within 3 years of the date of the alleged unlawful practice, or

within 90 days thereafter if the employee first discovered the facts of the unlawful practice after the expiration of the three-year period. (Gov. Code, § 1260(e)(5).) Here, Plaintiffs filed their CRD complaint on 11/17/23 and received their right to sue notices on the same day. (Defendants UF no. 51/Plaintiffs UF no. 79.)

Plaintiffs, in opposition, argue the continuing violation doctrine applies “[T]he continuing violation doctrine comes into play when an employee raises a claim based on conduct that occurred in part outside the limitations period.” (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 812.) A continuous violation requires that (1) the employer’s actions are sufficient in kind, (2) have occurred with reasonably frequency, and (3) have not acquired a degree of permanence. (*Id.* at 823.) Permanence means that the employer’s conduct triggers the employee’s awareness of and duty to assert his or her rights and makes clear that continued adverse treatment by the employer is to be expected. (*Ibid.*) The continuing violation may be established by demonstrating a companywide policy or practice, or a series of related acts against an individual. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 64.) The plaintiff must demonstrate that at least one act occurred within the filing period and that the discrimination or harassment is more than an isolated, intermittent acts but an on-going pattern. (*Ibid.*)

Plaintiffs fail to demonstrate how the continuing violation doctrine applies. They fail to identify which acts specifically they are trying to include—and not general allegations of “retaliatory conduct, informal discipline, written warnings, coaching, suspensions and ultimate terminations.” Plaintiffs fail to analyze how they are sufficient in kind, how often they occurred (as no dates are provided) and why they have not acquired a degree of permanence. Without dates or specific acts identified, Plaintiffs fail to demonstrate the continuing violation doctrine applies. Accordingly, Plaintiffs’ claims are limited to after November 17, 2020.

B. 2nd Cause of Action – Wrongful Termination in Violation of Public Policy

For a Tameny claim, the plaintiff must demonstrate: (1) an employer-employee relationship; (2) the termination of plaintiff’s employment was a violation of public policy; and (3) the termination caused plaintiff’s damage. (See *Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426, n.8.) Particularly, the plaintiff must establish that he was terminated in violation of a policy that is: (1) based in either constitutional or statutory provisions; (2) public, in the sense that it inures a benefit to the public rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894.)

“Constructive discharge, like actual discharge, is a materially adverse employment action.” (*Steele v. Youthful Offender Parole Board* (2008) 162 Cal.App.4th 1241, 1253.) An employee may not just quit and sue. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1246.) Nor may an employee be unreasonably sensitive to the working environment since “[e]very job has its frustrations, challenges, and

disappointments. (Id. at 1247.) The adverse working conditions must be unusually aggravated or amount to a continuous pattern. (Id.) The objective standard applies, and the question is whether a reasonable person would have no reasonable alternative except to quit. (Id. at 1248.) “In order to establish a constructive discharge, an employee must plead and prove, by the usual preponderance of the evidence standard, that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign.” (Id. at 1251.)

1. Koke

In its motion, Defendants provide the following evidence. Koke retired, receives a pension and gave notice six months prior to his union in October 2021. (Motion, Ex. B, p. 148:21-25; 149:11-151:13.) Koke notified Defendant Sysco Riverside of his intention to retire in February 2022, and ultimately retired on May 1, 2022. (Motion, Ex. B, p. 152:18-24, 153:14-19.) Supervisor Hoover ordered Koke to leave the yard once before he completed his inspection, in 2019, to which Koke refused and Hoover was unhappy and drove off. (Motion, Ex. B, p. 206:18-207:17.) Koke was not demoted, did not have a pay reduction, and did not experience any negative change to his employment. (Motion, Ex. B, p. 207:18-25, 209:23-210:18.) However, this is outside the relevant time period. Koke also testified that Chris Wiley told him to leave the yard before he completed his pre-inspection once in 2020 or 2021, and when Koke responded when he is done, Wiley was also unhappy but also eventually left. (Motion, Ex. B., p. 208:1-209:2.) Koke was not demoted, did not have a pay reduction, and did not experience any negative change to his employment. (Motion, Ex. B., p. 209:3-21.) He stated that no one demoted him or had his pay reduced, which was confirmed by Manzanares. (Motion, Ex. B, p. 213:210-214:5; Ex. C, p. 159:24-160:5.)

In opposition, Koke submits his declaration where he generally states that he opposed illegal practices. (Oppo, Ex. 1, ¶¶9, 13-14, 18.) He states that “the retaliation towards him escalated. Hoover targeted me and became more aggressive.” (Oppo, Ex. 1, ¶19.) However, he provides no examples other than conclusory statements. He generally avers to a hostile working environment, with only a general statement that Hoover would micromanage him. (Oppo., Ex. 1, ¶¶21, 23, 24.) However, without any specific examples, it is difficult to establish that a reasonable person would feel an intolerable or aggravated work environment.

Koke also relies on his deposition testimony. However, it is the same testimony pointed out by Defendants. Koke testified that Hoover was not happy when Koke told him that he will decide when the inspection is done, and he just drove off but there was no demotion or pay reduction. (Oppo., Ex. 7, p. 207:2-25.)

There are no examples of any adverse employment action as to Koke. There is no triable issue of material fact regarding whether Defendants constructively discharged Koke. The focus of constructive discharge is the working conditions themselves, and

not the subjective reaction of the plaintiff to the working conditions. (Simers v. Los Angeles Time Communications, LLC (2018) 18 Cal.App.5th 1248, 1275.) There are no examples that “ ‘working conditions were so intolerable or aggravated at the time of the employee’s resignation that a reasonable employer would realize that a reasonable person in the employee’s position would be compelled to resign.’ ” (Id.) The motion should be granted as to Koke.

2. Manzanares

Defendants present the following evidence. Manzanares testified that he felt Hoover was harassing him because he would make the following statements: (1) “Are you refusing to do your job?; and (2) “Do you want to go home?”. (Motion, Ex. C, p. 82:10-18.) But ultimately, Manzanares was frustrated because he felt it was unsafe practices related to the inspections. (Motion, Ex. C, p. 84:1-13.) Manzanares would feel “psychological harassment” because Hoover would be rushing him through the inspections, ask him “Why are you taking so long?” or “What are you doing?”, he would follow him around, and just push him to get out of the inspections fast. (Motion, Ex. C, p. 92:22-93:24.) Manzanares’ pay was not reduced because of sabotage. (Motion, Ex. C, p. 101:5-7.) When Hoover asked Manzanares whether he was refusing to do the job, Manzanares would not say anything, and Hoover would get visibly angry and follow him making Manzanares nervous and uncomfortable. (Motion, Ex. C, p. 116:14-118:12.) However, Manzanares always did a complete inspection. (Motion, Ex. C, p. 118:13-16.) Manzanares felt like he was being picked on because he would be asked how long he would be at stops. (Motion, Ex. C, p. 121:11-122:16.) Other supervisors may have mentioned Manzanares was spending too much time in the yard, but he did not feel harassed or mistreated—only by Hoover. (Motion, Ex. C, p. 145:16-146:9.) Hoover did not demote him or reduce his pay. (Motion, Ex. C, p. 175:11-176:25.) After one incident where Hoover demanded Manzanares sign something off the clock and Manzanares refused, Hoover did not take any negative action. (Motion, Ex. C, p. 175:25-176:17.)

When Manzanares informed Defendants of his resignation on 11/16/21, he did not inform him why he was resigning or of the Hoover situation. (Motion, Ex. C, p. 236:2-17, 239:12-240:2.) There was no comment or circumstance by Hoover within his last 30 days that caused Manzanares to resign. (Motion, Ex. C, p. 239:1-7.) Manzanares thought about resigning for about a month. (Motion, Ex. C, p. 245:13-19.) Manzanares already had a job lined up at Costco and started two days later. (Motion, Ex. C, p. 246:14-20.)

In opposition, Manzanares submits his declaration that is similar to Koke’s. Manzanares states he complained about safety issues. (Oppo, Ex. 2, ¶8-12.) Hoover would yell at him and became aggressive by driving in his golf cart “intimidating” him and writing him up. (Oppo., Ex. 2, ¶13-14.) Hoover would micromanage him. (Oppo., Ex. 2, ¶21.) He generally states that Hoover “would threaten us, follow us, and laugh about it.” (Oppo., Ex. ¶2, 4.) However, these are conclusory statements that objectively

do not demonstrate a hostile work environment such that constructive termination would be met.

Manzanares also relies on his deposition testimony, where the statement “Are you refusing to do your job?” gives an inclination of insubordination, which is grounds for termination, and stated it frequently. (Oppo., Ex. 3, p. 79:20-24, 87:25-88:14.) He believed that the statement “Do you want to go home?” is not right because “you don’t ask a grown man that.” (Oppo., Ex. 3, p. 79:25-80:17.) He mostly felt stressed because he felt it was unsafe. (Oppo., Ex. 3, p. 84:1-13.) Hoover would follow him around. (Oppo., Ex. 3, p. 93:12-15.) Hoover would sit there and time him. (Oppo., Ex. 3, p. 95:3-24.) However, Manzanares could not even testify as to the amount of times he interacted with Hoover. (Oppo., Ex. 3, p. 123:13-23.) Manzanares in UF No. 29 asserts that he told John Nelson he would resign if Defendants did not address the Randy Hoover situation. That is incorrect—Plaintiff affirmatively states he did not tell them. (Oppo., Ex. 3, 239:8-18.)

Manzanares apparently indicates he was written up, but UF No. 13 states that he doesn’t remember receiving an informational notice on 10/11/21 and received a write-up in 11/15/18—before the relevant time period. The cited evidence does not even support these statements.

Under the objective standard as required by Turner, Manzanares does not establish that conditions were so intolerable. Manzanares frequently relies on illegal conduct at work. (UF Nos. 10, 12.) However, the existence of illegal conduct does not render employment conditions intolerable. (Turner, *supra*, 7 Cal.4th at 1254.) The issues are the working conditions and whether they were intolerable. Additionally, the passage of time suggests the working conditions were not intolerable. (*Id.*) Manzanares contends he opposed the illegal practices from 2019 to 2021. (Oppo., Ex. 2, ¶8.) This length of time does not demonstrate that the conditions were so hostile that a reasonable person had no choice but to quit—since Manzanares was tolerating the conditions for several years. As such, Manzanares fails to demonstrate a triable issue as to constructive termination. The motion should be granted.

C. 1st Cause of Action – Labor Code § 1102.5

The FAC bases this claim on three subsections of section 1102.5: (a)-(c). (FAC ¶60.) Subsection (a) prohibits an employer from adopting a rule, regulation or policy preventing an employee from disclosing information to relevant authorities, a person with authority of the employee, or another employee who has authority to investigate, discover or correct the violation. Subsection (b) prohibits an employer from retaliating against an employee for disclosing information if the employee has reasonable cause to believe the information discloses a violation of a statute, rule or regulation. Subsection (c) prohibits an employer from retaliating against an employee for refusing to participate in an activity that would result in a violation of a statute, rule or regulation.

The plaintiff bears the burden to establish, by a preponderance of the evidence, that retaliation was a contributing factor in a challenged employment action. (Labor Code §1102.6.) To prove retaliation, a “plaintiff ‘must demonstrate that he or she has been subjected to an adverse employment action that materially affects the terms, conditions, or privileges of employment.’ ” (Francis v. City of Los Angeles (2022) 81 Cal.App.5th 532, 540-541.) “ ‘Minor or relatively trivial adverse actions by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee do not materially affect the terms or conditions of employment.’ ” (Ibid.) “This requirement ‘ ‘ ‘guards against both “judicial micromanagement of business practices” [citation] and frivolous suits over insignificant slights.’ [Citation.] Absent this threshold showing, courts will be thrust into the role of personnel officers, becoming entangled in every conceivable form of employee job dissatisfaction.’ ” (Ibid.)

For the same reasons discussed above, Plaintiffs have not demonstrated a constructive discharge or any other type of adverse employment action such as a demotion or loss of pay. Accordingly, the court should grant the motion.

D. 3rd Cause of Action – Negligent Hiring, Retention, Supervision

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

The Worker’s Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Workers’ Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee’s injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee’s commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Labor Code § 3600(a).) If these conditions do not exist, the employee may bring a civil action. (Labor Code §§3600-3602.) As stated in Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund (2001) 24 Cal.4th 800, 811-812, if the acts are a normal part of the employment relationship or worker’s compensation process, or the motive does not violate a fundamental state policy, then the cause of action is barred; otherwise, it may go forward. The court focused on whether the “acts or motives that establish the elements of the cause of action and considers whether these acts or motives constitute ‘a risk reasonably encompassed within the compensation bargain. [citation.] If they do, then the exclusive remedy provisions govern and bar the cause of action. If they do not, then the exclusive remedy provisions are inapplicable because the malfeasor is no longer acting as an ‘employer’ as understood in these provisions.” (Id. at 819-820.) “An employer’s supervisory conduct is inherently ‘intentional.’ In order to properly manage its business, every employer must on occasion review, criticize, demote,

transfer and discipline employees. Employers are necessarily aware that their employees will feel distressed by adverse personnel decisions, while employees may consider any such adverse action to be improper and outrageous. Indeed, it would be unusual for an employee not to suffer emotional distress as a result of an unfavorable decision by his employer.” (Cole v. Fair Oaks Fire Protection Dist. (1987) 43 Cal.3d 148, 160.) “[W]hen the misconduct attributed to the employer is actions which are a normal part of the employment relationship, such as demotions, promotions, criticism of work practices, and frictions in negotiations as to grievances, an employee suffering emotional distress causing disability may not avoid the exclusive remedy provisions of the Labor Code by characterizing the employer’s decisions as manifestly unfair, outrageous, harassment, or intended to cause emotional disturbance resulting in disability. The basis of compensation and the exclusive remedy provisions is an injury sustained and arising out of the course of employment [citations], and when the essence of the wrong is personal physical injury or death, the action is barred by the exclusiveness clause no matter what its name or technical form if the usual conditions of coverage are satisfied.” (Id. [finding that intentional infliction of emotional distress barred by worker’s compensation exclusivity].)

As stated in one case: “any claim for mere negligence ... would be barred here by the workers’ compensation laws, since Seahorn was the employee of Coit and may not sue for its allegedly negligent or improper supervision.” (Coit Drapery Cleaners, Inc. v. Sequoia Ins. Co. (1993) 14 Cal.App.4th 1595, 1606.)

In opposition, Plaintiffs merely state that Worker’s Compensation does not apply, but provides no analysis. “Contentions are waived when a party fails to support them with reasoned argument and citations to authority.” (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal. App. 4th 1210, 1215.) The motion should be granted.

E. 4th Cause of Action – Age Discrimination

The elements of age discrimination are that the plaintiff “(1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was replaced by someone significantly younger than the plaintiff.” (Sandell v. Taylor-Listug, Inc. (2010) 188 Cal.App.4th 297, 321.)

Defendants assert that Plaintiffs were over the age of 40 at the time of hiring. (UF no. 38-39.) The court fails to recognize the significance of these facts as they fail to go towards the prima facie case. Defendants contend there is no causal connection but failed to provide any evidence.

However, Defendants’ alternative theory of lack of adverse employment action applies. For the same reasoning discussed in constructive discharge, Plaintiffs fail to create a triable issue as to constructive discharge or any other adverse employment action. The motion should be granted.

F. 5th Cause of Action – Disability Discrimination

The elements of disability discrimination are that the plaintiff “(1) suffered from a disability or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived disability.” (Sandell v. Taylor-Listug, Inc. (2010) 188 Cal.App.4th 297, 310.)

Defendants argue that Koke’s supplemental responses to special interrogatories do not disclose a disability (UF No. 49)—however, Defendants did not provide these responses in their exhibits. Defendants fail to meet their initial burden. However, Defendants’ alternative argument that Koke did not suffer any adverse employment action is valid for the same reasons discussed in the constructive discharge. The motion should be granted as to Koke.

As to Manzanares, Defendants argue, and it is not disputed, that Manzanares received leaves of absence. (UF nos. 50-53.) This is irrelevant as it goes to the accommodation claims. Defendants then argue that Manzanares did not inform SRI that he had a disability. (UF no. 54.) However, the discovery responses do not support such a contention—that they are in his file. Defendants do not provide Manzanares’ personnel file. However, as with Koke, there is no adverse employment action as discussed previously. The motion should be granted.

G. 6th & 7th Causes of Action – Interactive Process & Failure to Accommodate

Government Code §12940(n) requires that an employer must engage in a “timely, good faith interactive process...in response to a request for a reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.” A failure to engage in this process is a separate FEHA violation. (Wilson v. County of Orange (2009) 169 Cal.App.4th 1185, 1193.) “The purpose of the interactive process is to determine what accommodation is required.” (A.N. v. Albertsons, LLC (2009) 178 Cal.App.4th 455, 464.) It is an employee’s responsibility to understand his or her own physical or mental condition well enough to present the employer at the earliest opportunity with a concise list of restrictions which must be met to accommodate the employee.” (Jensen v. Wells Fargo Bank (2000) 85 Cal.App.4th 245, 266; see also King v. United Parcel Service, Inc. (2007) 152 Cal.App.4th 426, 443 (“An employee cannot demand clairvoyance of his employer.”).) The employee has the burden of proving that there is a reasonable accommodation available before an employer will be held liable. (Nadaf-Rahrov v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 984.) There are no magic words to initiate the process, and the obligation arises once the employer becomes aware of the need to consider an accommodation. (Scotch v. Art Institute of California-Orange County (2009) 173 Cal.App.4th 986, 1013.)

The elements for a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual; and (3) the employer failed to reasonably accommodate the plaintiff's disability. (Wilson v. County of Orange (2007) 169 Cal.App.4th 1185, 1192.) FEHA defines "reasonable accommodation" as including (1) making existing facilities used by employees readily accessible and usable; and (2) job restructuring, part-time or modified work schedules, reassignments to a vacant position, acquisition or modification of equipment or devices, modifications of examinations, training materials or policies, providing qualified readers or interpreters and other similar accommodations. (Gov. C. §12926(p); see Nadaf-Rahrov v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 972-973.) "[A]n employer is only liable if the work environment could have been modified or adjusted in a manner that would have enabled the employee to perform the essential functions of the job." (Nadaf-Rahrov, supra, 166 Cal.App.4th at 975.)

As to Koke, the FAC does not identify what disability he suffers from. Pleadings frame the issue for summary judgment. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.) A summary judgment motion tests the sufficiency of the complaint, and the court may treat the summary judgment motion as a motion for judgment on the pleadings. (American Airlines, Inc. v. County of San Mateo (1996) 12 Cal.4th 1110, 1117; Prue v. Brady Co./San Diego, Inc. (2015) 242 Cal.App.4th 1367, 1375.) The court should treat the motion for summary judgment as one as judgment on the pleadings and grant the motion without leave to amend.

As to Manzanares, it is undisputed that Defendants approved his leaves of absences. (UF Nos. 50-53.) Plaintiffs merely argue that Defendants did not meet their initial burden but fail to explain why Defendants did not meet their initial burden on these claims. Plaintiffs lump this as discrimination, when these claims are separate from discrimination and do not require an adverse employment action. The motion should be granted as to Manzanares.

H. 8th Cause of Action – Failure to Prevent Discrimination & Retaliation

Government Code §12940(k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination and harassment. The general elements include a duty of care, breach, causation and damages. (See Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent if there is no underlying claim. (Id. at 284.) As there is no underlying claim, the court should grant the motion.

I. Punitive Damages

As summary judgment should be granted, this issue is moot.

J. Defendant Sysco Corporation

As summary judgment should be granted, this issue is moot.